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DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA
SECOND DISTRICT

APPELLATE CASE NO.
2D2026-2213

LOWER COURT CASE NO.
24 DR 1150

CHRISTOPHER HANSON
Petitioner / Respondent in underlying.

v.

SARAH HANSON
Respondent / Petitioner in underlying,

RESPONSE TO PETITION FOR WRIT OF CERTIORARI

ON REVIEW FROM THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT IN AND FOR HILLSBOROUGH COUNTY, FLORIDA
HONORABLE FELIX

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PRELIMINARY STATEMENT

Throughout this Response, Respondent shall be referred to as Wife, and Petitioner, shall be referred to as Husband. Citations to the Appendix as filed by Wife will be listed with an A followed by the page number and line number as applicable, i.e., (A. #:##).

The Appendix has been filed under separate cover with a cover page and index.

STATEMENT OF THE CASE AND OF THE FACTS

This is the second Writ of Certiorari regarding the appointment of a Guardian Ad Litem with this one focused on the parameters of Order governing the appointment of same as entered August 4, 2026.

Factual Background & Procedural History

On January 26, 2024, Wife initiated the underlying dissolution of marriage (with the agreement of Husband) with the filing of a "Joint Petition for Dissolution of Marriage with Dependent/Minor Children." (A.12). Both a pre-nuptial agreement and a post-marital settlement agreement exist between the parties. (A. 369-370). The first Case Management Conference for the underlying case occurred May 7, 2024. (A. 10). Following several discovery rulings by Judge Ayers, Husband filed his first Writ of Certiorari in this matter, identified by case no. 2D2025-0681. (A.30) The Writ was filed as of March 17, 2025, and was dismissed as of September 12, 2025. *Id.*

As of April 28, 2025, Judge Ayers recused herself from this matter granting Husband's *Second* Motion for Disqualification. (A.33). The second Motion for Disqualification came ***after*** a half day of testimony by Wife on her Motions to include the Motion to Appoint Guardian Ad Litem, Motion for Psychological Evaluation of Husband,

and Wife's Verified Motion for Temporary Relief. (A. 59-249). Of note, at the hearing held on Wife's Motion for Guardian Ad Litem on April 22, 2025, before Judge Ayers, Husband called a representative of the children's school to provide testimony. (A.68-91). This testimony was not presented to the Court by Husband at the hearing held before Judge Felix. The representative testified she noted sleepiness, tiredness of the children when the divorce proceedings occurred and also observed the young girls missed their mother. (A. 70-75; 78:17-24). None of the Motions were ruled upon by Judge Ayers in light of the granting of the disqualification sought by Husband. Thus, the Guardian Ad Litem Motion along with the other two motions remained unresolved.

The case was reassigned to Judge Felix with a CMC to occur May 19, 2025. (A. 6). At this hearing, Judge Felix set Wife's unresolved Motions and several of Husband's Motions for an eight (8) hour hearing to occur August 8, 2025. (A.3). At Husband's insistence, a 15-minute hearing occurred on Husband's Motion to Transfer Venue and Disqualify Judge Ayers with the remaining issue of the Venue transfer to be addressed by Judge Felix. (A. 5). The Court denied the venue transfer from Hillsborough to Pasco County.

Husband appealed the venue transfer denial (identified by case no. 2D20251936) and sought a stay of the underlying proceedings. (A. 37-38). On August 1, 2025, without hearing, the Trial Court entered the stay and unilaterally cancelled the eight (8) hour hearing scheduled for August 8, 2025. (A. 37-38). Husband subsequently served discovery despite the stay entered at his request and sent demands to Wife to limit contact between her and her daughters. Wife appealed the stay, which the Second District Court directed the trial court to readdress. *See Case No. 2D2025136* (A. 37).

Wife sought to lift the stay with a hearing set for October 9, 2025, which the Court continued to October 17, 2025, at Husband's insistence. (A.5). The Court lifted the stay following the October 17, 2025, with Husband filing a Motion to Disqualify ALL Judges of the 13th Judicial Circuit as of October 24, 2025, to prompt the cancellation of the subsequent CMCs. (A.41, 302: 21-25). Ultimately, at a subsequent CMC, the Court set twelve (12) motions for an eight (8) hour day to occur April 17, 2026. (A.304:3-24). In other words, an entire year after the first hearing on Wife's Motion for a Guardian Ad Litem, the Court was finally going to address same. Notably, on April 15, 2026, the Second District Court of Appeal

affirmed the trial court's decision to not transfer venue following oral argument. (A.303:10-16).

At the April 17, 2026, evidentiary hearing, the Court started hearing evidence and argument on the appointment of the Guardian Ad Litem. In fact, despite having approximately six (6) hours for this Motion, this Motion was continued for hearing to a five (5) hour hearing occurring May 29, 2026, and then continued again to a two (2) hour hearing set for June 10, 2026. (A. 281, 704, 1003). Currently, the other pending Motions originally set have been re-set to another eight (8) hour day of October 9, 2026, following yet another CMC. (A.3).

At each of the three (3) hearings on the Motion for the Guardian Ad Litem, extensive testimony (for which Husband was present) occurred to address the basis supporting Wife's Motion for Guardian Ad Litem. At the outset Wife testified to her visiting and supporting her children at their activities by attending during times Husband was not present at the activity and by having lunch with her girls at their school, once a week on the days they are with their Dad. A.420:4-21). Husband did not agree to Wife attending the children's sporting events whether he was present or not when the

events/activities fell on his visitation days. (A.422:9-12, 21-25; 423:1-6). There is no holiday schedule in place or that Mr. Hanson will agree to, which resulted in Husband accusing Wife of kidnapping for keeping them the full day on Mother's Day of 2025. (A.429:1-11). Husband refuses to allow Wife to attend team events or activities to include Award Banquets, in that if Wife attends, Husband will not permit the girls to attend. A.436:8-25; 437:1-16; 439:19-25; 440-441; 442:1-5; 486). Wife also testified to observing the children requesting more time with her along with observing anxiety at the times of exchanges and swaps. (A.444-450). Wife testified to placing her elder daughter in counseling over Husband's objections and sought to get the girls a cell phone for more contact with the respective parents to which Husband would not agree. (A.450, 458). The counseling ended at the counselor's interpretation of Husband's objection to her providing the counseling. (A.732:15-25). To date, Husband has not reached out to the counselor to withdraw the perceived objection or to authorize the necessary and helpful guidance provided by the counselor.

Wife testified as to the nature of the relationship between Husband and Wife prior to and post the divorce where coparenting is

a direct issue. Wife testified she observed her children with anxiety. (A.458, 468-470). Wife testified to observing her older daughter at an age of 7 put her younger sister to bed at the age 5 while Husband remained still or passed out in a hotel bed next to them. (A.470-472). Wife testified to Husband's excessive drinking (A.472:6-25), use of marijuana (A.473-474), pain medication use (A.473); history of anger management (475) to include losing control around the children (A.476, 478-479, 480-482), his history of insomnia (A.482), and his chronic depression (A.483-484). Wife also testified to a time when she was forced out of a hotel room by husband and had to drive across two states with the girls while sick (A.484-485). Husband acknowledges his mental health struggles, back pain, and drug use. (A.881:10-15); (A.882:2-14); (A. 883:20-24). He specifically confirmed taking Gabapentin, Hydrocodone, Auvelity, and Marijuana. *Id. See also,* (A.882:2-14, 888:11). He confirmed long standing depression. (A.883:20-24). He confirmed he does not sleep. (A.824:8).

Wife expressly explained her reasons to request a guardian ad litem to the Court.

> I've lived with Mr. Hanson, and I know that there's a private life and there's a public life. . . . I have -- I have the unique understanding of what goes on inside that house. Nobody else has that, okay. Anybody outside sees the . . . public image he wants them to see. I'm not trying to get back at him. . . .I want my kids to be safe, happy and healthy. But as little kids they don't know how to grapple with some of the things that I think that they witness, that I know that they probably do witness on a day-to-day basis. And I believe generally that a guardian ad litem can come in and assess the situation.
>
> If the guardian ad litem says 50/50, that's fine, then let them say 50/50. But for an obscure legislature, judge, or lawyer or someone else to come in and say it's absolutely 50/50 here when they've never been inside that house, and they don't know what goes on in that house. . . . This has been my top priority is I'm concerned over my kids. After leaving and having a self of calmness and peace that I never had in the house, I'm like, "Something's wrong." Okay. I finally was at a place where I know that it's not, it's not normal what's going on in that house. And I think a guardian ad litem can come in and assess that. . . . And I think the guardian ad litem is my best way of presenting to the Court why it shouldn't be 50/50. . . .I got out, and I have to give them the lifeline, and this is the only lifeline -- this is the only lifeline I know to give them through this process.

(A.488-491). As testified at the hearing, Husband has outright refused to share in any expenses and has stated he will not co-parent with Wife. (A.491:17-25).

The trial court ultimately determined a guardian ad litem would be beneficial and appointed same. Husband has filed a Writ as to

the initial Order appointing the Guardian Ad Litem but now has filed a Writ following the formal order outlining the parameters of the Guardian Ad Litem. Petitioner appears to take issue with various portions of the Order specifically paragraphs 3, 6, 7, 11, 12, 13, 14, 16, 17, 18, and 19. In the Petition on this matter, Petitioner references a written testimony summary request; however, this does not even apply to this Judge of these hearings as no such request occurred. The remainder of the Petition appears to challenge the confidentiality of the Guardian Ad Litem's records, the use of the Family Wizard, the waiver of hearsay, the payment allocation of the Guardian Ad Litem, and Petitioner's Freedom of Speech to post on his social media pages.

To date, Petitioner has not complied with the Guardian Ad Litem appointment order and a Motion for Contempt is pending. It has not been ruled upon by the Court and is beyond the scope and purview of this Court's jurisdiction even if the Writ were to be accepted.

SUMMARY OF THE ARGUMENT

Nowhere within the Petition filed has Husband identified what established Florida law the trial judge violated with this Order of appointment. A Court has wide discretion in the appointment of a guardian ad litem to assist the Court in a contested custodial determination. There are no required factual findings because there is no physical or mental examination of the minors by the appointed guardian ad litem. The Order ensures the confidentiality of the investigation without the harassment of a parent against the Court appointed Guardian Ad Litem. None of the individual paragraphs rise to the level warranting a Writ of Certiorari. They simply do not violate the law.

Moreover, the Petition falls short to establish irreparable harm. There is no evidence whatsoever presented of harm to the minor children. The order governing the parameters and authority of the guardian ad litem are in place to ensure a fair inquiry is made for the guardian to reach a conclusion that is in the best interests of the children without unwarranted outside influences of the parents beyond what is necessary. Further, the guardian ad litem is meant to investigate both households and investigate to assist the Court in

making a decision that is in the best interest of the children to the protection of the children. Husband does not maintain more rights than Wife in the interest of the children. He does not represent them. The guardian ad litem has been appointed to assist the children as the parties do not agree as to what is in the children's best interests.

The jurisdictional threshold has not been met and cannot be met. Accordingly, the Petition must be dismissed.

ARGUMENT ON APPEAL

STANDARD OF REVIEW

The applicable standard of review on a petition for writ of certiorari is whether the challenged order (1) constitutes a departure from the essential requirements of the law; (2) causes material injury throughout the remainder of the proceedings; and (3) causes injury that is irreparable as it effectively leaves no adequate remedy at law. *Menke v. Wendell,* 188 So.3d 869 (Fla. 2d DCA 2015); *Boby Express Co. v. Guerin* 930 So.2d 842 (Fla. 3d DCA 2006).

LEGAL ARGUMENT

I. No Evidence Has Been Presented To Establish The Court Departed From The Essential Requirements of Law Thereby Mandating Denial Of Husband's Petition.

The Lower Court's appointment of a guardian ad litem is wholly within its discretion and it is not a violation of Florida law to appoint one. The authority is found at s.61.401, Fla. Stat., which provides:

> In an action for dissolution of marriage or for the creation, approval, or modification of a parenting plan, if the court finds it is in the best interest of the child, the court may appoint a guardian ad litem to act as next friend of the child, investigator or evaluator, not as attorney or advocate. . . . The guardian ad litem shall be a party to any judicial proceeding from the date of the appointment until the date of discharge.

Id. The Florida Legislature went on to specify the confidentiality required at s.61.404, Fla. Stat., which provides:

> The guardian ad litem shall maintain as confidential all information and documents received from any source described in s. 61.403(2) and may not disclose such information or documents except, in the guardian ad litem's discretion, in a report to the court, served upon both parties to the action and their counsel or as directed by the court.

Id. Comparatively, the paragraph within the Court Order concerning confidentiality is specified at paragraph 12 of the underlying Order wherein it provides:

> The Guardian Ad Litem shall maintain as confidential all information and documents received from any source **under this paragraph** and may not disclose such information or documents except, in the guardian ad litem's **sole** discretion, in a report served upon both parties and their counsel, or as directed by the court.

> Neither party shall have the ability to obtain in any manner the Guardian Ad Litem's notes, file, or other file/investigative materials, as all such materials are privileged, confidential, and are not discoverable by either party for any reason.

(Order under Appeal page 5-6) (emphasis supplied). The Court's Order does not deviate from the Legislative immunity. Other than some re-ordering of the language, the Order tracks the statute. The underlined sentence is added but serves to repeat and reiterate the import of the confidentiality. The confidentiality is specific to the parents with just reason to prevent a parent from retaliating or manipulating the impressionable minors. The confidentiality is a means to protect the minors from the parents and vice versa and to maintain the relationship between the parent and the minor without the parent begrudging the minor. There is significance to the confidentiality of the information gathered. It further prevents a parent from retaliating against another individual who may provide unfavorable testimony/ opinions. It is to encourage witnesses and individuals to freely partake in the investigation without fear of retaliation. The Order does not violate the legislature's parameters.

The order also permits the hearsay exception to apply as that is the purpose of the guardian ad litem. The guardian ad litem gathers

the evidence and statements of individuals and relies upon the statements to make recommendations to the Court. That is the entire premise of the guardian ad litem program. They investigate and speak so that witnesses may speak freely to a third party about the minors with the conclusions drawn and provided to the Court. The hearsay exception is deemed waived so that the Guardian Ad Litem may present their findings. Further, as an expert the Rules of Evidence likewise permit the expert's conclusions based on her investigation, to include reliance upon hearsay to finalize her report. s.90.704, Fla. Stat. It follows, Florida law has simply not been violated. The clear waiver of the hearsay makes it clear to the parties to prevent confusion or to hide the evidentiary rules from the parents.

The Florida Legislature set forth immunity at s.61.405, Fla. Stat.:

> Any person participating in a judicial proceeding as a guardian ad litem shall be presumed prima facie to be acting in good faith and in so doing shall be immune from any liability, civil or criminal, that otherwise might be incurred or imposed.

Id. With the Court Order highlighting the immunity provision at paragraph 18 providing:

> The Guardian Ad Litem is hereby relieved of and shall be immune from any liability for any action performed in the furtherance of her responsibilities and duties as set forth herein. Each party hereby waives any and all claims they may have or shall have in the future with regard to any actions, recommendations, testimony or conduct of by the Guardian Ad Litem, whether now or in the future. The immunity provided by section 61.405, Fla. Stat., shall not be exclusive but in addition to all other afforded to a court appointed Guardian Ad Litem.

(Order under Appeal, paragraph 18, page 8). A plain reading of the language demonstrates the intent of the Order is to preserve the immunity of the Guardian Ad Litem to prevent and prohibit retribution from a parent who dislikes the recommendation. The immunity permits the witness to testify freely following the investigations to the protection of the minors and themselves to prevent tainting of testimony under fear of threats or retribution. Indeed, the precaution is necessary and warranted as Petitioner alone has demonstrated an unnecessary litigiousness in these proceedings.

Petitioner further argues his first amendment rights are violated because the parties are prohibited posting on social media and broadcasting remarks. Regardless of whether the free speech sought is to disparage or recommend or provide glowing reviews or discuss

the guardian ad litem or process on social media, the law is not violated. It is readily apparent free speech is not be used as a means to sway or tamper with an expert. It is clear the purpose of curbing remarks concerning the expert who is assigned for the sole purpose of making recommendations on behalf of the children is to protect the integrity of the process. To the extent the intent of the social media postings is to harass a Guardian Ad Litem it may be used to argue the expert was improperly swayed. Likewise, to the extent glowing reviews are left, it may again be perceived as means to improperly solicit bias of the Guardian towards or against a parent. The guardian is to remain independent due to the significance of the role played by the expert.

Petitioner's reliance upon *Delgado v. Miller,* 314 So.3d 515 (Fla. 3d DCA), is misplaced as the parties involved do not align. The gag order in *Delgado* prohibited the parties from commenting about the other party's emotional, mental health or personal behavior. In other words, the free speech that was being permitted was the right of one parental party to disparage or comment upon the other parental party. The attacking of an expert witness and intimidating an expert witness is prohibited free speech. It is an expert witness who must

make an assessment of the minors situation and homelife, which trumps any alleged free speech that prohibits a parent from bullying or uplifting a guardian ad litem via social media. Notably, not only are disparaging remarks prohibited but so are flowery and favorable remarks. The clear import is to protect the investigation so that an individual is not improperly swayed by social media statements of the parents or to cast doubt on an expert witness by way of alleged bias. Indeed, Florida law expressly prohibits speech used to tamper with a witness. s.914.22, Fla. Stat. Ergo, the Order prohibiting it here is in line with Florida law.

The ordering of the parties to issue payment of 50% is also not a violation of Florida law to support a writ of certiorari. In *Levy v. Levy,* 388 So.3d 932, the parties appealed a final order. This case relied upon by Petitioner does not support the granting of Writ to either meddle or re-draft the Order or to overturn the appointment of the Guardian Ad Litem. The requirement the parties each pay 50% of the retainer is simply not a basis to support a Writ or a basis to quash a Guardian Ad Litem appointment. The other case relied upon by Petitioner deals directly with a party's right to a deposition and pre-payment. *Adkins v. Sotolongo,* 227 So.3d 717 (Fla. 3d DCA 2017)

addressed whether it was appropriate for the guardian ad litem to condition appearance at a deposition upon payment from an indigent party. The case warranted a Writ as it impeded a party's ability to acquire discovery. This case has not even persuasive authority here to support a writ. Petitioner also cites to *MacDonald v. MacDonald*, No. 4D2025-3043 (Fla. 4th DCA Apr. 29, 2026); yet, this was also a case involving a final order of dissolution, not a petition for writ of certiorari. Petitioner was not required to pay 100% of the fee and there is no evidence of him being incapable to issue payment.

Petitioner takes issue with the requirement that the parties utilize family wizard. Petitioner ignores the fact Respondent has requested family wizard on multiple occasions and has now paid twice for the family wizard. It is also readily apparent the purpose of such a requirement is for the guardian ad litem to assess the parties communications at this juncture and to have unfettered access to the daily communications to assess the co-parenting nature of the communications. Indeed, Wife has already testified to communications directly impacting her relationship with her girls as blockaded by Husband. There is no violation of Florida law to require the use of a communication platform. Indeed, it is well within the

trial court's purview to make such an order even without request of the parties.

As it has not been established and cannot be established that any violation of law occurred by the lower court, this Petition must be denied.

II. Husband Cannot Establish Irreparable Harm And Thus Fails To Invoke The Jurisdiction Of the Court Thereby Mandating Denial.

The requirement of irreparable harm is jurisdictional. "Unless the petitioner establishes irreparable harm, the court must dismiss the petition for lack of jurisdiction. *Damsky v. Univ. of Miami*, 152 So. 3d 789, 792 (Fla. 3d DCA 2014); *Stockinger v. Zeilberger*, 152 So. 3d 71, 73 (Fla. 3d DCA 2014) ("The establishment of irreparable harm is a condition precedent to invoking certiorari jurisdiction). Husband does not sustain irreparable harm with the appointment of the guardian. He holds no more rights than Wife and cannot stand to serve on behalf of the couples' children where custody is directly contested. This is the purpose of the guardian ad litem.

The Order entered here does not cause irreparable harm. To reverse the confidentiality to include the gag order and immunity

provisions that govern the guardian ad litem discretion over the case would directly harm the investigations of the guardian ad litem. Irreparable harm occurs should these parameters be removed. Any fee provision with which Petitioner disagrees can be corrected at a later date of after the entry of a final order even if the Court were to determine insufficient findings concerning the parties' abilities to pay.

As noted above, the contempt order filed is not before this Court as it has not been ruled upon by the trial court. Husband has chronic depression, takes narcotics, lacks sleep, has anger management issues, and seeks control over the children to spite the Wife for no apparent reason. It is within the Court's discretion to enter a parenting plan even without a contempt order. Indeed, given the testimony and evidence provided to date, such an Order would still be supported. Further, if Husband is that concerned over the children having someone represent their best interests, he could agree to parenting schedule where Wife has more than 50% custody and a holiday schedule exists but refuses to do so. To the contrary, even with nearly three years of separation, Husband continues to

attempt to block Wife from her minor children and continues to disrupt and/or attempt to disrupt her relationship with her girls.

Husband's declarations of stress and inability to coparent are part of his tantrum to coerce or negatively impact others, particularly the minor children. Leveraging the children as a means to push his own agenda to "uncover" his own self developed theories is one of the many bases for the filing of the Motion for Psychological Evaluation, Motion for Guardian Ad Litem, and Motion for Temporary Relief. There is no harassment by Wife or Wife's Former Counsel of Husband that was ignored by the Judge but sound Motions filed for the protection of the minor children and their welfare. Two of these motions remain outstanding. Indeed, even the prior Judge was effectively bullied off this case.

Both the pre-nuptial and post-marital settlement agreements are drafted to highly benefit Husband financially; yet, he has engaged in a pattern of ongoing harassment of everyone involved in the dissolution proceedings. The minor children are the only ones who cannot escape without Court intervention, which has now been delayed by Husband who has continuously unnecessarily drawn-out hearings.

As irreparable harm has not been established and cannot be established, this Court does not have jurisdiction to accept the Petition, which must be rejected.

CONCLUSION

As stated within this Response, the Petition for Writ of Certiorari must be dismissed as the Petition falls short of meeting the jurisdictional threshold.

CERTIFICATES

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a copy of the foregoing has been served on all Counsel of Record via the Florida E-Filing Portal on this October 6, 2026.

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CERTIFICATE OF COMPLIANCE

I hereby certify this brief was prepared using (choose one) Bookman Old Style 14-point font and that it complies with the word count requirements in the Florida Rules of Appellate Procedure as per Fla. R. App. P. 9.045.

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